

IN THE COURT OF APPEAL OF THE DEMOCRATIC
SOCIALIST REPUBLIC OF SRI LANKA

In the matter of an application for Mandate in the nature of a *Writ of Certiorari* under and in terms of Article 140 of the Constitution of the Democratic Socialist Republic of Sri Lanka.

CA/WRT/0321/2018

Furnicraft Manufacturing (Pvt) Ltd,
73/B, Negombo Road,
Wattala.

PETITIONER

Vs.

1. Muthunayaka Pedige Nadeeka Nilmini
Muthunayaka,
No. 148/2, Kotabe,
Pasyala.
2. Asset Line Leasing Company,
No. 120/120/A,
Pannipitiya Road,
Battaramulla.
3. Consumer Affairs Authority,
1st and 2nd Floors,
CWE Secretariat Building,
P.O. Box 1581,
27, Vauxhall Street, Colombo 02.

4. Hasitha Thilekeratne,
Chairman,
Consumer Affairs Authority,
1st and 2nd Floors,
CWE Secretariat Building,
P.O. Box 1581,
27, Vauxhall Street, Colombo 02.

4A. Shantha Niriella,
Chairman,
Consumer Affairs Authority,
1st and 2nd Floors,
CWE Secretariat Building,
P.O. Box 1581,
27, Vauxhall Street, Colombo 02.

4B. J.M.C. Jayanthi Wijethunga,
Member,
Consumer Affairs Authority,
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CWE Secretariat Building,
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4C. W.W.A. Basnayake,
Member,
Consumer Affairs Authority,
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4D. Hemantha Samarakoon,
Chairman,
Consumer Affairs Authority,
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5. Zulfica Razeen,
Member,
Consumer Affairs Authority,
1st and 2nd Floors,
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5B. Gamini Rathmalala,
Member,
Consumer Affairs Authority,
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5C. W.G.Susantha,
Member,
Consumer Affairs Authority,
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5D. Kumara Bandaranayake,
Member,
Consumer Affairs Authority,
1st and 2nd Floors,
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6. Dr M. M. Hilmy,
Member,
Consumer Affairs Authority,
1st and 2nd Floors,
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P.O. Box 1581,
27, Vauxhall Street, Colombo 02.

7. A. R. D. Nihamdeen,
Member,
Consumer Affairs Authority,
1st and 2nd Floors,
CWE Secretariat Building,
P.O. Box 1581,
27, Vauxhall Street, Colombo 02.

RESPONDENTS

Before : B. Sasi Mahendran, J.
Adithya Patabendige, J.

Counsel : Rajeev Amarasuriya with Subani Hewapathirana instructed by Eranda
Wanasinghe for the Petitioner.
Ranga Dayananda instructed by Anuradhi Wickramasinghe for the 1st
Respondent.

Seevali Delgoda with Roshini Peiris instructed by Thanuja Karunaratne
for the 2nd Respondent.

Sehan Soyza, SSC for the 3rd to 7th Respondents.

Argued on : 23.07.2026

Written Submission

Tendered on : 12.08.2026 by the 3rd and 7th Respondents.

31.08.2026 by the 1st Respondent.

08.09.2026 by the Petitioner.

Decided on : 23.09.2026

Adithya Patabendige, J.

The Petitioner, Furnicraft Manufacturing (Pvt) Ltd., is a limited liability company engaged, *inter alia*, in the furniture business and in selling Norwood LM29 wood-cutting machines. The present application arises from the sale of one such machine by the Petitioner to the 1st Respondent and the subsequent proceedings before the Consumer Affairs Authority (hereinafter referred to as the Authority) relating to complaints made by the 1st Respondent regarding the operation of the said machine.

The Petitioner seeks, *inter alia*, a writ of *certiorari* quashing the determination of the Authority dated 01st May 2018, marked **P28**, which directed the Petitioner to refund Rs. 1,209,571.32 in respect of the machine.

The Petitioner states in its Petition dated 18th October 2018 that the 1st Respondent purchased the machine on 25th January 2014, and it was subject to a one-year warranty. However, the invoice relating to the said sale marked **P2** bears the date of sale as 29th January 2014.

Thereafter, complaints arose regarding its operation. The Petitioner contends that the 1st Respondent subsequently made a written complaint to the Authority on 15th May 2015, marked **P9**. The Authority thereafter commenced proceedings under Section 13 of the Consumer Affairs Authority Act, No. 9 of 2003.

The preliminary objection and the principal grounds arising for determination in this application may be considered as follows.

- i) whether the application is maintainable in view of the objection raised by the 1st Respondent that the affidavit filed in support of the Petition was affirmed prior to the date of the Petition,
- ii) whether the Authority lacked jurisdiction by reason of Section 13(2) of the Consumer Affairs Authority Act,
- iii) whether the proceedings and/or the impugned determination were invalid for want of the prescribed quorum,
- iv) whether the Petitioner was denied a proper inquiry and a fair opportunity of being heard, thereby resulting in a violation of the principles of natural justice, and
- v) whether **P28** is vitiated by illegality, irrationality or procedural impropriety, particularly on the ground that no technical report was obtained establishing that the LM29 machine was defective.

Preliminary objection relating to the supporting affidavit

The learned Counsel for the 1st Respondent raised preliminary objections to the maintainability of this application, *inter alia*, on the ground that the affidavit tendered in support of the Petition had been affirmed before the date of the Petition and that the Petition itself is contrary to the Court of Appeal Rules. The Petition is dated 18th October 2018, whereas the supporting affidavit was affirmed on 15th October 2018.

Rule 3(1)(a) of the Court of Appeal (Appellate Procedure) Rules 1990 requires every application made to this Court for the exercise of the powers vested in it by Articles 140 or 141 of the Constitution to be made by way of Petition “together with an affidavit in support of the averments therein”. The same Rule further provides that where there is non-compliance, the Court may, *ex mero motu* or at the instance of a party, dismiss the application. **Justice Sasi Mahendran** considered the said Rule in ***M.H.M. Riyaaz v. Institution of Engineers Sri Lanka and Others, CA/WRT/424/2022, decided on 04th April 2024.***

The purpose of a supporting affidavit is not merely formal. It provides sworn verification of the factual averments upon which the jurisdiction of the Court is invoked. As observed by **Justice Mahendran**, an affidavit is intended to satisfy the Court, *prima facie*, of the truth of the allegations contained in the application and thereby provides the evidential foundation upon which the Court may act.

In **Riyaaz's** case, the Petition was dated 10th November 2020, but the affidavit was dated 09th November 2020. **Justice Mahendran**, considering the aforementioned Rule, held that there was no valid affidavit.

In **Roylin Fernando v. W.A. Christian Gamini Fernando and Others, SC Appeal No. 18A/09, decided on 04th March 2016**, the Supreme Court considered an affidavit sworn nearly two years before the Petition. The Court held that it could not regard it as an affidavit supporting the facts asserted in a Petition that did not exist when the affidavit was sworn. The Court also considered the absence of material demonstrating that the discrepancy resulted from a clerical error.

The Court applied the same principle in **Nagananda Kodithuwakku v. Chandana Sooriyabandara and Others, CA/WRT/137/2022, decided on 07th August 2023**. There, the Petition was dated 01st April 2022, while the purported supporting affidavit was affirmed on 01st April 2021. The Court held that the affidavit could not constitute an affidavit in support of a Petition that did not exist when the affidavit was affirmed.

The above authorities establish that an affidavit affirmed before the Petition which it purports to support cannot be regarded as a supporting affidavit as contemplated by Rule 3(1)(a).

It is true that in the present application the interval between the affidavit and the Petition is only three days. However, the underlying principle of the aforesaid authorities does not depend merely upon the length of the interval. The material question is whether the affidavit tendered to the Court is an affidavit in support of the averments contained in the Petition, as expressly required by Rule 3(1)(a).

The affidavit in the present application was affirmed on 15th October 2018, whereas the Petition which it purports to support is dated 18th October 2018. No material has been placed before this Court to establish that the discrepancy is attributable to a clerical error or otherwise to provide a sufficient basis upon which the Court could disregard the defect.

Accordingly, following the *ratio* of **Roylin Fernando, Nagananda Kodithuwakku and M.H.M. Riyaaz**, I hold that the affidavit affirmed on 15th October 2018 cannot be considered a valid supporting affidavit to the Petition dated 18th October 2018 for the purposes of Rule 3(1)(a) of the Court of Appeal (Appellate Procedure) Rules 1990.

Hence, the preliminary objection raised by the 1st Respondent is upheld.

Ordinarily, that conclusion would be sufficient to dispose of this application. However, as the parties have addressed the Court at length on the substantive grounds on which the impugned determination marked **P28** is challenged, I consider it appropriate, for completeness, to address those submissions as well.

Statutory framework

Section 13 of the Consumer Affairs Authority Act provides the statutory foundation for the proceedings in question. It states as follows.

“(1) The Authority may inquire into complaints regarding,

(a) the production, manufacture, supply, storage, transportation or sale of any goods and to the supply of any services which does not conform to the standards and specifications determined under section 12; and

(b) the manufacture or sale of any goods which does not conform to the warranty or guarantee given by implication or otherwise, by the manufacturer or trader.

(2) A complaint under subsection (1) which relates to the sale of any goods or to the provision of any service shall be made to the Authority in writing within three months of the sale of such goods or the provisions of such service, as the case may be.

(3) At any inquiry held into a complaint under subsection (1), the Authority shall give the manufacturer or trader against whom such complaint is made an opportunity of being heard either in person or by an agent nominated in that behalf.

(4) Where after an inquiry into a complaint, the Authority is of opinion that a manufacture or sale of any goods or the provision of any services has been made which does not conform to the standards or specifications determined or deemed to be determined by the Authority, or that a manufacture or sale has been made of any

goods not conforming to any warranty or guarantee given by implication or otherwise by the manufacturer or trader, it shall order the manufacturer or trader to pay compensation to the aggrieved party or to replace such goods or to refund the amount paid for such goods or the provision of such service, as the case may be.

(5) An order under subsection (4) shall be made in writing and be communicated to such manufacturer or trader by registered post.

(6) Where any manufacturer or trader fails or refuses to comply with an order made under subsection (4) of this section, such manufacturer or trader shall be guilty of an offence under this Act, and the sum of money due on the order as compensation or refund may, on application being made in that behalf by the Authority to the Magistrate's Court having jurisdiction over the place of business or residence of such manufacturer or trader as the case may be, be recovered in like manner as a fine imposed by such court, notwithstanding that such sum may exceed the amount of a fine which that court may, in the exercise of its ordinary jurisdiction, impose.”

Within this statutory framework, the legality of **P28** must be examined.

Objection under Section 13(2)

The Petitioner contends that the Authority lacked jurisdiction to entertain the complaint because the written complaint of the 1st Respondent marked **P9** was made on 15th May 2015, whereas the machine had been purchased in January 2014.

On a literal comparison of those dates, the complaint was not made within three months of the sale.

However, this Court has considered the interpretation and application of Section 13(2), particularly where goods are supplied subject to a warranty or guarantee, in several decisions.

In *David Pieris Motor Company Ltd v Consumer Affairs Authority, CA Writ 635/2007, decided on 03rd August 2009, Justice Sriskandarajah* held that Section 13(2) must be given a purposive interpretation so as not to render nugatory the protection afforded in respect of warranties and guarantees under Section 13(1)(b).

Attention is drawn to the following paragraph on page 6 of the judgment.

“Section 13(2) must be given a purposive interpretation. If a warranty of goods covers for a period of two years and the purchaser can only complain within three months of the purchase of the goods in relation to the breach of a warranty or guaranty, It will lead to absurdity and the protection given by Section 13(1)(b) would be rendered nugatory. Section 13(2) has imposed a three months limitation for complaints only in relation to the sale of any goods or to the provision of any service which does not conform to the standards and specifications determined under section 12.”

This purposive approach to Section 13(2) has subsequently been applied in the context of warranties and guarantees in other cases as well.

In ***Aqua Technologies (Pvt) Ltd v. Consumer Affairs Authority and Others (2012) 1 SLR 358, decided on 21st September 2012, Justice Sriskandarajah***, referring to and following the decision in ***David Pieris Motor Company Ltd v. Consumer Affairs Authority***, reiterated that the three-month limitation stipulated in Section 13(2) does not apply to complaints relating to a breach of a warranty or guarantee falling within Section 13(1)(b).

In ***Lankem Ceylon PLC v. Consumer Affairs Authority, CA (Writ) 245/2011, decided on 30th October 2014, a Divisional Bench comprising Justices Anil Goonaratne, H.N.J. Perera and P.W.D.C. Jayathilake*** considered Section 13 in the context of a complaint made under an express warranty. At page 17 of the judgment, the Court states thus:

“The three months referred to therein is more or less directory and not mandatory.”

The Court also recognised the practical difficulty that would arise where a latent defect becomes apparent only after the expiration of three months. In that context, the Court considered the existence of the guarantee period an important factor in determining whether the Authority was entitled to entertain the complaint.

In the case of ***A Base Mechfarms (Pvt) Limited v Consumer Affairs Authority and Others, CA (Writ) Application No. 31/2013, decided on 27th April 2016, His Lordship the Justice Surasena (as he then was)*** rejected a strict literal interpretation of Section 13(2), observing that such an interpretation would produce the anomalous result that a consumer who had been

granted a warranty or guarantee exceeding three months would be deprived of the protection afforded by Section 13(1)(b) after the first three months of the transaction.

This approach is further supported by *Micro Cars Limited v. Consumer Affairs Authority & Others, C.A. (Writ) Application No. 189/2014, decided on 1st July 2016*, where the *Justice Malalgoda*, drew attention to the earlier decision in *David Pieris Motor Company Limited v. Consumer Affairs Authority* and emphasised the importance of adopting a purposive interpretation of Section 13(2), rather than a narrow literal interpretation, so that the provision operates consistently with its underlying objective of protecting consumers and giving meaningful effect to the statutory warranty and guarantee provisions.

In *Future Automobiles (Pvt) Ltd v. Consumer Affairs Authority, CA WRIT 26/2016 decided on 18th February 2019*, His Lordship Justice Samayawardhena followed the reasoning in *David Pieris Motor Company Ltd v Consumer Affairs Authority, Aqua Technologies*, and *A Base Mechfarms (Pvt) Ltd v Consumer Affairs Authority*, when considering the operation of Section 13(2) in the context of a warranty or guarantee.

However, it is to be noted that in the instant application, the Petitioner did not raise the objection under Section 13(2) before the Authority. Instead, the Petitioner participated in the proceedings for a considerable period, responded to the allegations concerning the machine, participated in attempts to obtain technical assistance, and subsequently entered into an arrangement to determine whether the machine was functioning properly.

Aqua Technologies is particularly relevant in this respect. This Court considered the effect of a party failing to raise the objection under Section 13(2) before the Authority while participating in the proceedings and subsequently seeking to rely upon that objection in judicial review.

Justice Sriskandarajah, on page 361, states as follows,

“The Petitioner's first objection in this application is that the 1st Respondent has entertained the complaint of the 2nd Respondent even though the said complaint was prescribed in terms of Section 13(2) of the Consumer Affairs Authority Act. It is pertinent to note that the Petitioner had not taken up this objection before the 1st Respondent when the inquiry was held before the 1st Respondent. The petitioner had acquiesced in the proceedings before the 1st Respondent as it had not taken up this

objection before the 1st Respondent. As such the Petitioner cannot raise the said objection in a judicial review proceedings before the Court of Appeal...”

In the present case, although it is not disputed that the machine was sold subject to a one-year warranty, the Petitioner contends that **P9** was lodged with the Authority after the expiry of that period. However, the material before the Authority indicates that complaints regarding the operation of the machine arose and were brought to the Petitioner's attention during the warranty period. The Petitioner relied on **P9** and argued that the 1st Respondent lodged a complaint with the Authority on 15th May 2015. However, **P7** itself contradicts this argument. **P7** is the agreement entered into between the Petitioner and the 1st Respondent on 20th November 2014. Paragraph 2 of **P7** states as follows,

“දෙවන පාර්ශ්වය තල මුවහත් කිරීමේ යන්ත්‍රය සම්බන්ධව පාරිභෝගික ආරක්ෂක අධිකාරිය වෙත ඉදිරිපත් කර ඇති පැමිණිල්ල ඉල්ලා අස්කර ගැනීමට සහ එකී මුදල සම්පූර්ණ සහ අවසානාත්මක සමථයක් ලෙස භාරගැනීමට එකඟවේ.”

According to the above paragraph, it is abundantly clear that the 1st Respondent made a complaint to the Authority before 20th November 2014, which was well within the warranty period, although the three-month period had expired.

Therefore, **P7** clearly establishes that a complaint was lodged with the Authority before 20th November 2014. **P9** itself further substantiates that the 1st Respondent had made a complaint to the Authority prior to 15th May 2015. (*Vide.* last sentence of the 1st paragraph of **P9**). It further indicates that, after the 1st Respondent had made the complaint to the Authority, the Petitioner provided money to the 1st Respondent to repair the blade-sharpening machine.

Accordingly, **P7** establishes that a complaint concerning the blade-sharpening machine had already been made to the Authority before 20th November 2014. Thus, quite apart from the purposive interpretation of section 13(2) adopted in the authorities referred to above, the Petitioner's contention, founded solely on **P9** dated 15th May 2015, does not establish that the complaint to the Authority was first made on that date.

Considering the aforesaid judgments and the above facts of the instant application, I am unable to accept the contention that **P28** should be quashed for want of jurisdiction by reason of the time bar stipulated in Section 13(2).

Quorum of the Consumer Affairs Authority

The Petitioner next contends that the proceedings before the Authority were invalid because the prescribed quorum was not present during the inquiry.

In *Micro Cars Limited v Consumer Affairs Authority and Others, CA WRIT 427/2016, decided on 18th September 2020, His Lordship Justice Samayawardhena, with His Lordship Justice Arjuna Obeyesekere agreeing*, recognised that the prescribed quorum for a meeting of the Authority is four members. The Court further observed that the non-existence of the prescribed quorum of the Authority is not purely a question of law, but is initially a question of fact which must be established by the party seeking to rely upon it. In that case, the Court declined to entertain the objection where it had not been specifically raised in the pleadings, and there was no clear evidence upon which the Court could reach a firm conclusion that the Authority had acted without the prescribed quorum. The Court also reiterated that, in the exercise of writ jurisdiction, disputed questions of fact cannot ordinarily be determined by this Court.

In *KIA Motors (Lanka) Limited v. Consumer Affairs Authority and Others, CA (Writ) Application No. 66/2013, decided on 26th May 2020, His Lordship Justice Arjuna Obeyesekere* held that the Authority's inquiry panel had acted without the quorum of four members prescribed by Paragraph 8(2) of the Schedule to the Consumer Affairs Authority Act No. 9 of 2003, having sat with only three members on both inquiry dates.

Thus, *KIA Motors* further confirms that an inquiry conducted in the absence of the statutorily required quorum is invalid and cannot give rise to a legally enforceable decision.

In *Diesel and Motor Engineering PLC v. Consumer Affairs Authority and Others, CA (Writ) Application No. 43/2016, decided on 22nd November 2019, His Lordship Justice Samayawardhena*, applying the reasoning of *Shell Gas Lanka Ltd. v. Consumer Affairs Authority [2007] 2 Sri LR 212*, held that an inquiry conducted without the requisite quorum is invalid and that such defect cannot be cured by the subsequent signing of the formal order by the requisite number of members.

In the present case, **P28** bears the signatures of four members of the Authority. The Petitioner has not placed sufficient material before this Court to establish that the statutory determination under Section 13(4) was made in the absence of the prescribed quorum. The mere fact that the proceedings at every stage do not disclose the presence of four members

cannot, without further evidence, justify an inference that the ultimate determination was made without the quorum required by law. It is to be noted that the Petitioner did not contend this fact in his Petition dated 18th October 2018. The Petitioner raised this issue for the first time in the instant application at its Counter Affidavit. However, it is significant that the Petitioner did not raise the said issue during the course of the argument.

In the circumstances, applying the reasoning in *Micro Cars* and other authorities referred to above, I am of the view that the Petitioner failed to establish that the Authority made the order marked **P28** without the prescribed quorum.

Proceedings before the Authority

The Petitioner contends that the Authority did not hold a proper inquiry during the proceedings.

The Authority held an inquiry on 29th October 2015. At that stage, the parties agreed to obtain a technical opinion regarding the machine.

The Authority then attempted to obtain technical assistance from the University of Moratuwa. By communication dated 16th March 2016, the University informed the Authority that it could not provide the required assistance.

The matter was thereafter fixed for inquiry on 18th August 2016. At that stage, it was decided to seek a report from the State Timber Corporation. That attempt too did not materialise.

It was again taken up on 10th January 2017. The parties then agreed upon a mechanism to examine the machine. According to the material placed before this Court, the parties agreed that if a defect was identified, the Petitioner would refund the relevant amount and pay a further sum of Rs.100,000 per year for three years.

The matter was again called on 27th January 2017 to ascertain the progress of the arrangement. Thereafter, the Authority and the Petitioner exchanged correspondence concerning its implementation.

The Authority ultimately formed the view that the Petitioner was avoiding implementation of the arrangement. Having considered the oral and documentary material before it, the Authority made the determination marked **P28**.

audi alteram partem

The Petitioner contends that the Authority conducted no proper inquiry and that its procedure violated the rule of *audi alteram partem*.

Section 13(3) expressly requires that the manufacturer or trader against whom the complaint is made be afforded an opportunity of being heard.

The question is therefore whether the Petitioner knew the case which it had to meet and was afforded a fair and reasonable opportunity to present its position.

An inquiry under Section 13 is not necessarily required to assume all the formal characteristics of a judicial trial. In ***Future Automobiles***, the Court recognised the *sui generis* character of the inquiry while emphasising that the requirements of natural justice must nevertheless be observed.

The material in the present case demonstrates that the Petitioner was fully aware of the substance of the complaint. It appeared before the Authority on several occasions. It disputed the allegation that the LM29 machine was defective. It advanced the explanation that the difficulties experienced by the 1st Respondent were attributable to the manner in which the machine was operated and the lack of proper training or skill on the part of the operators.

The Petitioner participated in the attempts to obtain technical assistance. It also participated in the arrangement ultimately reached for examination of the machine.

This is therefore not a case where an adverse determination was made without notice to the affected party or without providing that party an opportunity to answer the allegations.

The mere absence of sworn testimony and formal cross-examination does not, by itself, establish a breach of natural justice in an administrative inquiry of this nature.

The facts are materially distinguishable from ***Lankem***. There, the Court found that the proceedings had ended without affording the affected party the fair opportunity the circumstances required.

In the present case, the proceedings continued over a substantial period, and the Petitioner participated throughout.

I am therefore unable to conclude that the Petitioner has established a violation of the rule of *audi alteram partem*.

Absence of a technical report

The Petitioner places considerable emphasis upon the fact that no independent technical report was ultimately obtained establishing that the LM29 machine was defective.

The Petitioner contends that the Authority lacked the technical expertise to determine whether the machine was defective and that, without an expert report, **P28** lacks a proper evidential foundation.

This submission must be considered in the context of the entire course of the proceedings.

The Authority did not ignore the technical nature of the dispute. The parties initially agreed to obtain technical assistance. An approach to the University of Moratuwa was unsuccessful. A subsequent attempt to obtain assistance from the State Timber Corporation also failed. The parties thereafter agreed upon another mechanism for examining the machine.

The Petitioner's own position is particularly relevant. The Petitioner maintained that the machine was functional and that the difficulties complained of arose from operator-related factors. Further, in its Counter Affidavit, the Petitioner said the proposed involvement of engineers from Canada was intended to demonstrate that the machine did not malfunction.

Thus, the Petitioner itself regarded the question of functionality as objectively verifiable.

Therefore, the Petitioner had ample opportunity to substantiate its own explanation that the machine was functional and that the problem resulted from its operation rather than from any defect in the machine.

However, where a complaint of malfunction is before the Authority and the seller maintains that the machine is functioning properly and attributes the problem to operator error, the seller's ability or failure to substantiate that explanation is a circumstance the Authority is entitled to consider alongside the other material before it.

Equally, the absence of the resulting technical verification does not, by itself, render the subsequent determination of the Authority unlawful or irrational.

In *Lankem*, the Divisional Bench recognised the importance of technical or scientific material in an appropriate case and observed that independent expert assistance would have been desirable in the circumstances.

That decision cannot be taken to mean that expert evidence is an indispensable jurisdictional prerequisite to every determination under Section 13 involving machinery.

The question is whether material reasonably capable of supporting the determination reached by the Authority existed.

The arrangement reached between the parties and P28

It is necessary at this point to consider the significance of the arrangement reached during the proceedings.

P28 refers to the history of the complaint, the proceedings conducted before the Authority, the attempts to obtain technical assistance, the oral and documentary material placed before the Authority and the arrangement reached between the parties.

The Authority considered that the Petitioner had avoided implementing the agreed mechanism. The Authority was entitled to take that conduct into account, together with the other material before it.

Thus, **P28** cannot properly be characterised as an order made merely to enforce the settlement. The arrangement and the Petitioner's subsequent conduct formed part of the factual matrix the Authority considered in reaching its determination under Section 13(4).

Financing arrangement

The pleadings also refer to the financing arrangement between the 1st Respondent and **Assetline Co. Ltd.**, the 2nd Respondent, and to separate proceedings arising out of that contractual relationship.

In my view, it is neither necessary nor appropriate to determine those matters in the present application.

Scope of writ jurisdiction

The remaining submissions must ultimately be considered within the proper limits of the jurisdiction invoked by the Petitioner.

This Court, exercising jurisdiction under Article 140 of the Constitution, does not sit as an appellate tribunal over the Authority.

Judicial review concerns the legality of the decision-making process and the exercise of statutory power. The recognised grounds include illegality, irrationality and procedural impropriety. A breach of the principles of natural justice constitutes a form of procedural impropriety.

The question before this Court is therefore not whether, upon independently evaluating all the material, this Court would itself have concluded that the LM29 machine was defective.

It is not the function of this Court to decide whether the explanation advanced by the Petitioner concerning operator error ought to have been preferred to the complaint made by the 1st Respondent. Those are essentially factual matters for the statutory Authority to consider.

This approach is supported by the reasoning of *Future Automobiles (Pvt) Ltd.* There, factual questions concerning whether the alleged defects constituted factory faults or resulted from wear and tear ought to have been raised and determined before the Authority, rather than decided afresh by the writ court.

The function of this Court is to ascertain whether the Authority acted within the powers conferred upon it by law, whether the affected party was afforded the opportunity required by Section 13(3), whether the decision-making process was procedurally fair, and whether there was material upon which the Authority could rationally exercise the power entrusted to it.

The Petitioner bears the burden of establishing a recognised public-law ground that warrants the intervention of this Court.

In the circumstances, I am of the view that the Petitioner failed to establish any ground for invoking the writ jurisdiction of this Court.

Conclusion

For the reasons stated above, I uphold the preliminary objection raised by the learned Counsel for the 1st Respondent. The affidavit affirmed on 15th October 2018 cannot be regarded as an affidavit in support of the Petition dated 18th October 2018 within the meaning of Rule 3(1)(a) of the Court of Appeal (Appellate Procedure) Rules 1990. The application is therefore liable to be dismissed on that ground alone.

Nevertheless, having considered, for completeness, the substantive grounds urged by the Petitioner, I am not satisfied that the Petitioner has established that the impugned determination marked **P28** is vitiated by illegality, irrationality or procedural impropriety. The material before this Court does not establish that the Petitioner was denied the opportunity of being heard as required by Section 13(3) of the Act. The Petitioner has not established that, in the particular circumstances of this case, the absence of an independent technical report rendered the order made under Section 13(4), marked **P28**, unlawful or irrational.

Accordingly, the application is dismissed.

I make no Order as to costs.

JUDGE OF THE COURT OF APPEAL

B. Sasi Mahendran, J

I agree.

JUDGE OF THE COURT OF APPEAL